

		According to The Rutter Guide, “[i]t is unclear whether the deposition record is ‘completed’ when the reporter sends <i>notice</i> that the transcript is available for review . . . or only after the expiration of time to sign or correct the transcript The safer course is to use the date of the reporter’s notice.” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2026 Update) § 8:801.) Upon completing the transcript, the reporter notifies the deponent and other parties attending the deposition that the original transcript is ready for review and signature by the deponent. (Code Civil Procedure § 2025.520(a).) Here, the PMK deposition of Derma Noor was conducted on December 4, 2025. (Declaration of Charles G. Hemming III (“Hemming Decl.”), ¶ 6, Ex. B.) Plaintiff does not provide evidence as to the date of the reporter’s notice. However, Plaintiff’s counsel attaches excerpts of the deposition transcript along with the Certification of the Certified Shorthand Reporter, which is dated December 18, 2025. (Ex. B to Hemming Decl.) Assuming the date of the reporter’s notice is the same date the Certification was signed, i.e., December 18, 2025, the motion is untimely. 60 days from December 18, 2025, is February 16, 2026 (court holiday). Although the separate statement in support of the instant motion was filed on February 13, 2026, the instant motion was not filed until February 24, 2026, after 60 days from December 18, 2025. The notice of motion and all supporting papers must be filed within the mandatory 60-day period. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 319-321 [finding motion to compel further responses to deposition notice untimely where the papers supporting the motion were not filed and served until after the 60-day deadline to file the motion to compel even though the notice of motion and motion was timely served within the 60-day deadline].) Plaintiff fails to address and show that the instant motion is timely brought, and does not request relief from the 60-day statutory deadline. Based on the foregoing, since the 60-day deadline is mandatory and discovery deadlines have been treated as jurisdictional, the Court is without authority to rule on the motion to compel other than to DENY it. Plaintiff to give notice.
11.	30-2025-01518357 Carter vs. Built to Perfection, Inc	1. Motion to Compel Production Plaintiff Judith A. Carter (“Plaintiff”) moves to compel defendant Built to Perfection, Inc. (“Defendant”) to serve further responses to Plaintiff’s Requests for Production, Set One, Set One, Nos. 1-25. Plaintiff’s initial meet and confer correspondence referenced only Nos. 12, 15, and 16. (Exhibit 4 at p. 9.) In response, Defendant’s counsel asked Plaintiff’s counsel to please advise whether he wished to have supplemental responses indicating a reasonable search was made for documents. (Exhibit 5 at pp. 18-20.) Defendant agreed to supplement Nos. 12, 15, and 16 to include language that “a diligent search and a reasonable inquiry has been made in an effort to comply” with the demands but ultimately failed to provide the agreed-upon supplemental responses. (Exhibit 7 at p. 3; Exhibit 9 at p. 2.) Plaintiff did not raise issue with any other requests until an email sent on June 9, 2026, when Plaintiff asserted that responses to Nos. 2-11, 13-14, and 17-20 were deficient. (Exhibit 9 at p. 2.) Plaintiff demanded amended responses no later than June 11, 2026. (Exhibit 9 at p. 4.) Defendant’s counsel

		responded on June 11 to advise that he did not intend to serve supplemental responses pursuant to Plaintiff's unilateral deadline. (Exhibit 9 at p. 1.) The Court finds that, outside of Nos. 12, 15, and 16, Plaintiff did not adequately meet and confer regarding the dispute requests. Raising any issues with regard to the responses only two days before Plaintiff's unilateral deadline for supplemental responses does not constitute a good faith attempt to reach an informal resolution. Plaintiff argues that any further meet and confer would have been futile and Defendant's refusal to meaningfully engage in the meet and confer process is well documented. But there is no evidence that Defendant refused to meaningfully engage in the meet and confer process. Rather, Defendant simply refused to comply with Plaintiff's two-day deadline to serve supplemental responses, a deadline that was unreasonable in light of the numerous issues raised in Plaintiff's meet and confer correspondence. Because Plaintiff did not adequately meet and confer with regard to Nos. 1-11, 13-14, and 17-25, the Motion as to those requests is DENIED. As to Nos. 12, 15, and 16, Defendant's response that it is not in possession, custody, or control of any responsive documents is not accompanied by the required affirmation that "a diligent search and a reasonable inquiry has been made in an effort to comply with [these] demand[s]." (Code Civ. Proc., § 2031.230.) Thus, further responses are warranted. The Motion as to Nos. 12, 15, and 16 is therefore GRANTED. Further responses to be <u>served within 15 days</u>. Given that the Motion is in large part denied, Plaintiff's request for monetary sanctions is also DENIED. Moving party to give notice.
12.	30-2023-01329362 Re/Pro Realty vs. Avarca	1. Motion to Compel Deposition (Oral or Written) Plaintiff Re/Pro Realty's motion to compel the deposition of third-party Claudia Romo is DENIED. On August 6, 2026, this Court continued the initial hearing on this matter to allow Plaintiff time to file a proof of service of the moving papers, as well as to allow opposition and reply briefing. The Clerk served the Court's Minute Order continuing the hearing on Plaintiff and Plaintiff was ordered to serve notice of the continued hearing on all other parties. (ROA 189.) Plaintiff has not filed a proof of service demonstrating that notice of the continued hearing date was given as required. Thus, in addition to Plaintiff's failure to comply with this Court's order, the proposed deponent (nonparty Claudia Romo) does not appear to have been notified of the continued hearing date for this motion and no responsive pleading was filed. Further, while Plaintiff filed a proof of service indicating that the proposed deponent was personally served with the moving papers, there is no indication that any of the parties to the case were served with the underlying papers, as required by the Code of Civil Procedure. Clerk to give notice.